IN THE NATIONAL COMPANYLAW TRIBUNAL: NEW DELHI
PRINCIPAL BENCH

Item No. 201
CA(CAA)122(PB)/2018

IN THE MATTER OF:
SV Power Pvt. Ltd. with .... APPLICANT / PETITIONER
ACB (India) Ltd.

SECTION:
Under Section 230-232 of the Companies Act, 2013.

Order delivered on 03.10.2018

Coram:

CHIEF JUSTICE (RTD.) M. M. KUMAR
HON'BLE PRESIDENT

S. K. MOHAPATRA
HON'BLE MEMBER (TECHNICAL)

PRESENTS:
For the Petitioner(s):- Mr. Rakesh Kumar with Ms. Chetna Bisht, Advs.

ORDER

This petition was heard on 20.09.2018 and the order was under preparation. However, I was not able to pursuade myself for passing any order because during the course of hearing numerous petitions, an order passed by Hon'ble Supreme Court on 11.09.2018 [Transfer Petition (C) Nos 1399-1404 of 2018] has come to our knowledge. The aforesaid order reads as follows:

"TRANSFER PETITION (C) NOS. 1399-1404 OF 2018

RESERVE BANK OF INDIA .....Petitioner(s)

v.

VERSUS DHARANI SUGARS AND CHEMICALS LTD. & ORS. ETC.

.....Respondent(s)

WITH

TRANSFER PETITION (C) NOS. 1283-1288 OF 2018

WRIT PETITION (C) NO. 1086/2018

O R D E R

Issue notice.

Heard the learned counsel appearing for the parties.

For the grounds stated in the Transfer Petitions, we allow transfer of W.P. (C) No. 20672-20676/2018 [Dharani Sugars & Chemicals Limited vs. Union of India & Ors.] pending before the High Court of Judicature at Madras, Special Civil Application No. 12492 of2018 [Shipyards Association of India vs. Union of India & Ors.] pending before the High Court of Gujarat at Ahmedabad, Civil Misc. Writ Petition No. 18170 of 2018 [Independent Power Producers Association of India vs. Union of India & Ors.], Civil Misc. Writ Petition No. 23181 of 2018 [Association of Power Producers & Ors. vs. Union of India & Ors.], Civil Misc. Writ Petition No. 23183 of 2018 [Prayagraj Power Generation Company Limited vs. Union of India & Ors.] pending before the High Court of Judicature at Allahabad, W.P. No. 16095 of 2018 [The South Indian Sugar Mills Association – Tamil Nadu vs. The Reserve Bank of India] pending before the High Court of Judicature at Madras, Writ Petition (C) No. 7221/2018 [Vayam Technologies Limited & Anr. vs. Union of India & Ors.], Writ Petition (C) No. 6463/2018 [All India Bank Officers Confederation vs. Union of India & Anr.] pending before the High Court Delhi at New Delhi to this Court.

Let the records of the cases be transferred without delay. The transfer petitions are allowed in the afore-stated terms. Status quo, as of today, shall be maintained in the meantime. WRIT PETITION (C) NO. 1086/2018: Issue notice. Status quo, as of today, shall be maintained in the meantime. List all these petitions for final disposal on Wednesday, the 14th November, 2018."

In the proceeding pending before the Supreme Court, a circular issued by RBI on 12.02.2018 is under challenge and it appears to have bearing on the power generating companies. The

present case being the one concerning power generation company, the object of the company appears to be power generation/ supply. Accordingly, the matter be posted for clarification.

List on 12.11.2018.

Sd/-

(M. M. KUMAR)
PRESIDENT

Sd/-

(S. K. MOHAPATRA)
MEMBER (TECHNICAL)

03.10.2018
Aarti